

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Colonial Laws Validity Act, 1865	28 & 29 Vict. c. 63.
Interpretation Act, 1889	52 & 53 Vict. c. 63
Colonial Courts of Admiralty Act, 1890 ...	53 & 54 Vict. c. 27
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Copyright Act, 1911	1 & 2 Geo. 5. c. 46.
Imperial Institute Act, 1925	15 & 16 Geo. 5. c. xvii.
Indian and Colonial Divorce Jurisdiction Act, 1926	16 & 17 Geo. 5. c. 40.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Visiting Forces (British Commonwealth) Act, 1933	23 & 24 Geo. 5. c. 6.
Colonial Stock Act, 1934	24 & 25 Geo. 5. c. 47.
Whaling Industry (Regulation) Act, 1934 ...	24 & 25 Geo. 5. c. 49.
Ships and Aircraft (Transfer Restriction) Act, 1939	2 & 3 Geo. 6. c. 70.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Merchant Shipping (Safety Convention) Act, 1949	12, 13 & 14 Geo. 6. c. 43.
Income Tax Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 10.
Diplomatic Immunities (Commonwealth Coun- tries and Republic of Ireland) Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 18.
Visiting Forces Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 67.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Import Duties Act, 1958	6 & 7 Eliz. 2. c. 6.
British Nationality Act, 1958	6 & 7 Eliz. 2. c. 10.
Commonwealth Institute Act, 1958	6 & 7 Eliz. 2. c. 16.
Emergency Laws (Repeal) Act, 1959	7 & 8 Eliz. 2. c. 19.
Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961	9 & 10 Eliz. 2. c. 11.

CHAPTER 17

Betting Levy Act, 1961

ARRANGEMENT OF SECTIONS

Horserace Betting Levy Board

Section

1. Establishment of Horserace Betting Levy Board.
2. General powers and duties of Levy Board.

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3. Bookmakers' levy schemes.
4. Assessment of or exemption from bookmakers' levy.
5. Bookmaker's permits and the levy.

Contributions by and reconstitution of Totalisator Board

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6. Contributions by Totalisator Board.
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General

8. Accounts of, and reports by, Levy Board and Totalisator Board.
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10. Short title, commencement and extent.

SCHEDULES:

- First Schedule—Bookmakers' Committee.
Second Schedule—Appeal tribunals.

An Act to provide for contributions for purposes connected with the advancement of horse racing from persons engaged by way of business in effecting betting transactions on horse races; and for connected purposes. [28th March, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Horserace Betting Levy Board

Establishment
of Horserace
Betting Levy
Board.

1.—(1) There shall be established a Horserace Betting Levy Board (in this Act referred to as "the Levy Board") which shall be charged with the duty of assessing and collecting in accordance with the provisions of this Act, and of applying, subject to the provisions of this Act, for purposes conducive to any one or more of the following, that is to say—

- (a) the improvement of breeds of horses;
- (b) the advancement or encouragement of veterinary science or veterinary education;
- (c) the improvement of horse racing.

monetary contributions from bookmakers within the meaning of the Betting and Gaming Act, 1960, and from the Totalisator Board referred to in section seven of this Act.

(2) The Levy Board shall consist of a chairman and seven other members of whom—

- (a) the chairman and two other members shall be appointed by the Secretary of State and shall be persons who the Secretary of State is satisfied have no interests connected with horse racing which might hinder them from discharging their functions as members of the Board in an impartial manner;

- (b) two members shall be appointed by the Jockey Club ;
- (c) one member shall be appointed by the National Hunt Committee ;
- (d) one member shall be the chairman for the time being of the Bookmakers' Committee established under subsection (3) of section three of this Act ; and
- (e) one member shall be the chairman for the time being of the Totalisator Board ;

(3) Any person appointed to be a member of the Levy Board under paragraph (a) of subsection (2) of this section shall hold and vacate office in accordance with the terms of the instrument under which he was appointed, and any person appointed to be a member of the Board under paragraph (b) or (c) of that subsection may be removed from the Board at any time by the person by whom he was appointed.

(4) The Jockey Club, the National Hunt Committee, the Bookmakers' Committee and the Totalisator Board respectively may from time to time appoint a person to act in the place of such a member of the Levy Board as is mentioned in paragraph (b), (c), (d) or (e), as the case may be, of subsection (2) of this section at any meeting of the Levy Board at which that member is unable to be present, and while so acting any such person shall be deemed for the purposes of any act or proceeding of the Levy Board to be a member of that Board.

(5) The Levy Board shall be a body corporate and shall have perpetual succession and a common seal.

(6) The Levy Board may pay to the chairman and the two other members appointed by the Secretary of State such remuneration, and to any member of the Board travelling, subsistence or other allowances at such rates, as the Board may with the approval of the Secretary of State determine.

(7) The Levy Board may appoint officers, servants and agents on such terms as to remuneration, pensions or otherwise as the Board may determine.

(8) The Levy Board may regulate their own procedure and make standing orders governing the conduct of their business.

(9) The first meeting of the Levy Board shall be convened by the chairman.

(10) No act or proceeding of the Levy Board shall be questioned on account of any vacancy in the number of the members thereof or on account of the appointment of any member having been defective.

(11) Part III of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies certain offices the holders of which are disqualified under that Act), as it applies to the House of Commons of the Parliament of the United

Kingdom, shall have effect as if after the entry relating to the National Parks Commission there were inserted the words "Member appointed by the Secretary of State of the Horserace Betting Levy Board".

General
powers and
duties of
Levy Board.

2.—(1) The Levy Board shall have power—

- (a) with the approval of, and subject to any conditions imposed by, the Secretary of State, to engage in any activity connected with any of the matters specified in paragraphs (a) to (c) of subsection (1) of section one of this Act;
- (b) to acquire and hold such land as may be reasonably required for the purposes of any of their functions and to sell or lease any land held by them which is not required for those purposes;
- (c) to borrow for the purposes of any of their functions and to give security for any moneys borrowed by them;
- (d) to lend or invest money for the purposes of or in connection with any activity in which they have power under paragraph (a) of this subsection to engage, and to make such other loans or investments as they judge desirable for the proper conduct of their affairs and as, under the enactments for the time being in force, a trustee would be authorised to make out of trust funds;
- (e) to do all such things as are incidental to, or conducive to the attainment of the purposes of, any of their functions.

(2) The Levy Board shall apply any moneys from time to time available in their hands—

- (a) in providing for the payment of rates, taxes, charges, expenses and other outgoings, including any sums which they are required or authorised to pay by virtue of section nine of, or the First or Second Schedule to, this Act;
- (b) in retaining such sums and making provision for such matters as they think proper in connection with any of their functions;
- (c) in making such payments as they think fit for charitable purposes;
- (d) subject to the foregoing paragraphs of this subsection, in making payments, in accordance with schemes from time to time prepared by the Levy Board and approved with or without modifications by the Secretary of State, for such purposes as are mentioned in subsection (1) of section one of this Act.

Levy on bookmakers

3.—(1) Contributions under this Act by bookmakers shall be paid by way of a levy in respect of each levy period in accordance with a scheme having effect for that period under this section; and in this Act the expression “levy period” means a period of twelve months beginning with the first day of April in any year. Bookmakers’
levy schemes.

(2) Any such scheme shall include provision—

- (a) for securing that the levy shall be payable only by a bookmaker who carries on on his own account a business which includes the effecting of betting transactions on horse races, and only in respect of so much of the business of the bookmaker as relates to such betting transactions;
- (b) for bookmakers to be divided for the purposes of the levy into different categories;
- (c) for the amount, if any, payable by way of the levy by any particular bookmaker to be determined by reference to the category into which he falls;
- (d) as to the method of the promulgation of the scheme by the Levy Board;
- (e) for the submission to the Levy Board by each bookmaker before a specified date of a declaration as to the category into which he falls;
- (f) for the issue by the Levy Board of notices of assessment to, and certificates of exemption from, the levy.

(3) For the purposes of the levy there shall be established in accordance with the provisions of the First Schedule to this Act a committee which shall be known as the Bookmakers’ Committee.

(4) Not later than such date before the beginning of any levy period as the Levy Board may determine, the Bookmakers’ Committee shall make recommendations to the Levy Board with respect to the scheme to have effect under this section for that period, and those recommendations shall take the form either of a draft scheme or of a recommendation that the current scheme shall continue to have effect without amendment or with specified amendments.

(5) If the Levy Board approve the recommendations aforesaid, or those recommendations as revised by the Bookmakers’ Committee in the light of any observations thereon made to the committee by the Board, the scheme so recommended and approved shall have effect accordingly for the levy period in question.

(6) If the Levy Board do not approve the recommendations or any revised recommendations of the Bookmakers' Committee, or if by the date specified under subsection (4) of this section no recommendations have been received by the Board from the committee, the three persons for the time being appointed to be members of the Board by the Secretary of State shall consider and compare—

- (a) the extent of the need for the time being for contributions for such purposes as are specified in subsection (1) of section one of this Act ;
- (b) the capacity for the time being of bookmakers to make contributions for such purposes ; and
- (c) the capacity for the time being of the Totalisator Board to make such contributions,

and, in the light of that consideration and comparison, make their own determination as to the scheme to have effect under this section for the levy period in question, which may take the form either of a new scheme or of a direction that the current scheme shall continue to have effect without amendment or with specified amendments ; and the scheme so determined shall have effect accordingly for that period.

Assessment of
or exemption
from
bookmakers'
levy.

4.—(1) Subject to the provisions of this section, a bookmaker shall be assessed to or exempted from the levy under the scheme having effect for any levy period under section three of this Act in accordance with his declaration submitted in accordance with that scheme as to the category into which he falls for the purposes thereof.

(2) If in the case of any bookmaker and any levy period the bookmaker fails to submit such a declaration as aforesaid in accordance with the scheme having effect for that period, the Levy Board shall refer his case to the Bookmakers' Committee for their opinion as to the category into which he falls, and, subject to the provisions of this section, the bookmaker shall be assessed to or exempted from the levy for that period accordingly.

(3) The Bookmakers' Committee may, and if so required by the Levy Board in the case of any particular declaration or class of declarations shall, scrutinise any such declaration as aforesaid ; and if, in the case of any bookmaker whose declaration is scrutinised under this subsection by the committee, the committee are of opinion that he falls into some other category than that stated by him in his declaration, then, unless an assessment notice or certificate of exemption has already been issued to that bookmaker in respect of the levy period in question, he shall be assessed to or exempted from the levy for that period by reference to that other category.

(4) In exercising any of their functions under subsection (2) or (3) of this section, the Bookmakers' Committee may consult such persons, if any, as they think proper.

(5) An assessment notice issued by the Levy Board in the case of any bookmaker for any levy period shall be conclusive as to his liability to the levy for that period and the amount payable by him by way thereof unless not later than twenty-eight days after the notice is served on him he gives to the Board notice in writing of appeal therefrom.

(6) On receiving any notice of appeal under the last foregoing subsection, the Levy Board shall refer the appeal to an appeal tribunal established in pursuance of the Second Schedule to this Act, which shall have power to confirm, increase or reduce the assessment, or grant the appellant a certificate of exemption from the levy, according to the tribunal's opinion as to the category into which he falls, but which—

(a) shall not reduce the assessment or grant the appellant a certificate of exemption unless the appellant has afforded the tribunal all the facilities it may have required for the investigation of his case;

(b) shall confirm the assessment unless the tribunal is satisfied that, on all the evidence made available to it, the assessment should be varied or rescinded;

and any decision of the tribunal as to the category into which the appellant falls for the purposes of the levy for the levy period in question shall be final.

(7) Any amount assessed as payable by any bookmaker by way of the levy in respect of any levy period shall become due twenty-eight days after notice of the assessment has been served on the bookmaker or, if he appeals therefrom in pursuance of the foregoing provisions of this section, on the determination or abandonment of the appeal, and shall be recoverable by the Levy Board as a debt due to them.

(8) Upon the discharge by a bookmaker of his liability by way of the levy in respect of any levy period, the Levy Board shall issue to him a certificate in writing to the effect that he has done so, and any such certificate shall be conclusive evidence of the facts stated therein.

(9) An assessment notice may be served on any bookmaker either by serving it on him personally or by sending it to him by post at his usual or last-known residence or place of business in the United Kingdom or, if the bookmaker is a company, at the company's registered office.

(10) If, otherwise than with the consent in writing of the bookmaker concerned or—

(a) for the purposes of this section or of a report of any proceedings before an appeal tribunal thereunder; or

(b) for the purposes of, or of a report of—

(i) proceedings for the recovery from that bookmaker of any amount due from him by way of the levy; or

(ii) proceedings relating to that bookmaker before an appropriate authority within the meaning of the First Schedule to the Betting and Gaming Act, 1960, or before any court on an appeal from any such authority; or

(iii) any criminal proceedings,

any person who is a member, officer or servant of the Levy Board, the Bookmakers' Committee or an appeal tribunal established under this Act, or who is consulted by the Bookmakers' Committee in pursuance of subsection (4) of this section, discloses to any other person in such a manner as to identify the bookmaker concerned any declaration by or assessment on any bookmaker for the purposes of the levy, or any other information concerning that bookmaker obtained through the exercise of any functions under this section, or any ruling of the Bookmakers' Committee or an appeal tribunal as to the category into which any bookmaker falls, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

Bookmaker's
permits and
the levy.

5.—(1) The clerk to each appropriate authority within the meaning of the First Schedule to the Betting and Gaming Act, 1960, shall send to the Levy Board such particulars of any bookmaker's permit granted or renewed under that Act by, or by the court which determined any appeal from, that authority as the Secretary of State may by regulations made by statutory instrument prescribe.

(2) In considering for the purposes of any application for the renewal of a bookmaker's permit whether any person is or is not a fit and proper person to be the holder of such a permit, any such authority as aforesaid shall have regard to whether or not that person has discharged all his liabilities, if any, by way of the levy, and to the circumstances in which any failure to discharge any of those liabilities arose.

Contributions by and reconstitution of Totalisator Board

Contributions
by Totalisator
Board.

6.—(1) Subject to subsection (2) of this section, the contribution to be paid by the Totalisator Board under this Act in respect of any levy period shall be such as may be determined before the beginning of that period by the Levy Board after consultation with the Totalisator Board.

(2) If in the case of any levy period the Totalisator Board object to the contribution determined by the Levy Board under the foregoing subsection, the contribution payable by the Totalisator Board in respect of that period shall instead be determined

by the three persons for the time being appointed as members of the Levy Board by the Secretary of State, who shall make their determination after, and in the light of, the consideration and comparison by them of—

- (a) the extent of the need for the time being for contributions for such purposes as are specified in subsection (1) of section one of this Act ;
- (b) the capacity for the time being of the Totalisator Board to make contributions for such purposes ; and
- (c) the capacity for the time being of bookmakers to make such contributions.

7.—(1) The Board established under the Racecourse Betting Act, 1928 (in this Act referred to as “ the Totalisator Board ”) shall, instead of being known as the Racecourse Betting Control Board, be known as the Horserace Totalisator Board, and any reference to the Racecourse Betting Control Board in any Act or other document shall be construed accordingly.

(2) The following provisions of section two of the said Act of 1928 (which relate to the membership of the Totalisator Board), that is to say, subsection (1) from the word “ which ” onwards and subsections (3), (4) and (5), and any appointment to the Board in pursuance of those provisions, shall cease to have effect, and the Board shall be reconstituted in accordance with the provisions of the next following subsection.

(3) The Totalisator Board shall consist of a chairman and three other members, all four of whom shall be appointed by the Secretary of State and shall hold and vacate office in accordance with the terms of the respective instruments under which they are appointed ; and the first meeting of the Board as reconstituted in pursuance of this subsection shall be convened by the chairman.

(4) Subject to subsection (8) of this section, the Totalisator Board may pay to any member of the Board such remuneration, and travelling, subsistence or other allowances at such rates, as the Board may with the approval of the Secretary of State determine ; and subsection (6) of section two of the said Act of 1928 shall cease to have effect.

(5) Any officer, servant or agent appointed by the Totalisator Board under subsection (7) of the said section two may be appointed on such terms as to remuneration, pensions or otherwise as the Board may determine ; and in the said subsection (7) the words from “ and prescribe ” onwards shall cease to have effect.

(6) Paragraph (a) of subsection (3) of section eleven of the Betting and Gaming Act, 1960 (which confers on the Totalisator Board like powers to those conferred on the Levy Board by

paragraph (a) of subsection (1) of section two of this Act) shall cease to have effect ; and for paragraph (d) of the said subsection (3) (which confers on the Totalisator Board powers of investment similar to those conferred on the Levy Board by paragraph (d) of the said subsection (1)) there shall be substituted the following, that is to say—

“(d) to make such loans or investments as they judge desirable for the proper conduct of their affairs, being loans or investments either—

(i) such as, under the enactments for the time being in force, a trustee would be authorised to make out of trust funds ; or

(ii) approved, or of a description approved, by the Secretary of State.”

(7) Subsection (4) of the said section eleven (which relates to the manner in which the Totalisator Board are to apply any moneys from time to time available in their hands) shall cease to have effect ; and subject to paragraph (3) of section three of the said Act of 1928 and to subsections (1) and (2) of section eighteen of the Betting and Lotteries Act, 1934, the Totalisator Board shall apply any such moneys—

(a) in providing for the payment of rates, taxes, charges, expenses and other outgoings ;

(b) in making provision for the payment of any contribution for the time being payable by them under section six of this Act ;

(c) in making such other provision in connection with any of their functions as they think proper.

(8) In Part III of the First Schedule to the House of Commons Disqualification Act, 1957, as it applies to the House of Commons of the Parliament of the United Kingdom, the words “ Chairman of the Racecourse Betting Control Board ” are hereby repealed ; but the Totalisator Board shall not by virtue of subsection (4) of this section have power to pay remuneration to any member of the Board who is for the time being a member of, or nominated as a candidate for election to, the House of Commons.

General

Accounts of,
and reports
by, Levy
Board and
Totalisator
Board.

8.—(1) The Levy Board and the Totalisator Board shall each keep proper accounts and proper records in relation to those accounts and prepare proper statements of account in respect of each levy period ; and the accounts of each of the Boards for each such period shall be audited by qualified auditors appointed for the purpose by the Board in question for that period.

(2) As soon as the accounts of the Totalisator Board for any levy period have been audited, that Board shall submit a copy of their statements of account and the auditor's report thereon for that period, together with a report of their proceedings during that period, to the Levy Board ; and the Levy Board shall submit to the Secretary of State a report of the proceedings during that period both of the Levy Board and of the Totalisator Board, which shall include the statements of account and the auditor's report for that period of each of the Boards ; and the Secretary of State shall cause a copy of the Levy Board's report to be laid before each House of Parliament.

(3) The Levy Board shall cause copies of any report submitted by them under the last foregoing subsection to be made and kept available at their offices for inspection by the public without charge during reasonable hours and for supply on demand to any member of the public upon payment of such reasonable charge in respect of each copy as the Board may determine.

(4) Except as respects any period falling before the date of commencement of subsection (2) of this section, paragraph (8) of section three of the Racecourse Betting Act, 1928 (which requires a report to be submitted annually by the Totalisator Board to the Secretary of State) shall cease to have effect.

(5) For the purposes of subsection (1) of this section, the expression "qualified auditor" means a person who is a member, or a firm all of the partners wherein are members, of one or more of the following bodies, that is to say—

- (a) the Institute of Chartered Accountants in England and Wales ;
- (b) the Institute of Chartered Accountants of Scotland ;
- (c) the Association of Certified and Corporate Accountants ;
- (d) the Institute of Chartered Accountants in Ireland ;
- (e) any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948, by the Board of Trade.

9.—(1) The Totalisator Board and the Levy Board shall consult together as to whether or not, having regard to the functions which under this Act are to cease to be exercised by the Totalisator Board but are to be exercised by the Levy Board, any, and if so which, of the assets and liabilities of the Totalisator Board immediately before the date of commencement of subsection (7) of section seven of this Act should be transferred to the Levy Board ; and any question arising in any such consulta-

Transitional provisions.

tions shall at the request of either of the Boards be referred to and determined by the Secretary of State.

(2) The Secretary of State may, if he thinks fit for the purposes of any such transfer as aforesaid, by order made by statutory instrument direct that on the date specified in the order such of the assets or liabilities of the Totalisator Board as are so specified shall vest in, and become assets or, as the case may be, liabilities of, the Levy Board.

(3) Without prejudice to the powers of the Totalisator Board in that behalf, the Levy Board shall have power to pay compensation to any person who, having been employed by the Totalisator Board immediately before the date of commencement of subsection (7) of section seven of this Act, has at the expiration of the period of six months beginning with that date ceased to be in, or been given notice of termination of, that employment without being offered employment by the Levy Board.

Short title,
commencement
and extent.

10.—(1) This Act may be cited as the Betting Levy Act, 1961.

(2) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint, and different days may be appointed for different provisions or different purposes of this Act.

(3) Except so far as it amends the House of Commons Disqualification Act, 1957, this Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

BOOKMAKERS' COMMITTEE

1. The Bookmakers' Committee shall be constituted in such manner as the Secretary of State may, after consultation with any body appearing to him to be representative of the interests of bookmakers generally, by regulations made by statutory instrument prescribe.

2. Provision may be made, and from time to time varied, by a scheme under this paragraph for the payment of remuneration to all or any of the members of the Bookmakers' Committee, and for the provision of secretarial and other facilities for the committee; and such a scheme—

(a) may be made at any time by agreement between the committee and the Levy Board; or

(b) on any occasion on which proposals for such a scheme are made by the committee or by the Levy Board but the

committee and the Board cannot agree thereon, may be made by the three persons for the time being appointed to be members of the Levy Board by the Secretary of State.

1ST SCH.

3. The Levy Board shall pay—

- (a) any amounts payable by virtue of any scheme under paragraph 2 of this Schedule ;
- (b) any other expenses incurred by the Bookmakers' Committee for the purposes of this Act with the approval, whether general or special, of the Levy Board ;
- (c) any travelling and other expenses reasonably incurred by any person as a member of the Bookmakers' Committee.

4. The Bookmakers' Committee may regulate their own procedure and make standing orders governing the conduct of their business.

5. The first meeting of the Bookmakers' Committee shall be convened by the Levy Board.

6. No act or proceeding of the Bookmakers' Committee shall be questioned on account of any vacancy in the number of the members thereof or on account of the appointment of any person as a member thereof having been defective.

SECOND SCHEDULE

APPEAL TRIBUNALS

Section 4.

1. There shall be established for the purposes of section four of this Act—

- (a) one or more appeal tribunals for England and Wales ; and
- (b) one or more appeal tribunals for Scotland ;

and an appeal under subsection (5) of the said section four shall be referred to a tribunal established for Scotland if the appellant is the holder of a bookmaker's permit which was last granted or renewed in pursuance of the Betting and Gaming Act, 1960, by an authority in Scotland.

2. Each such tribunal shall consist of a chairman and two other members of whom—

- (a) the chairman, who shall be a barrister, advocate or solicitor of not less than seven years' standing, shall be appointed by the Lord Chancellor or, in the case of a tribunal established for Scotland, by the Lord President of the Court of Session ; and
- (b) the other members shall be appointed by the Secretary of State ;

and each member of any such tribunal shall hold office in accordance with the terms of the instrument under which he was appointed.

2ND SCH.

3.—(1) The procedure of any such tribunal shall be such as the Lord Chancellor or, in the case of a tribunal established for Scotland, the Lord President of the Court of Session may by rules prescribe.

(2) Any such rules shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament; and the Statutory Instruments Act, 1946, shall apply to any such instrument made in pursuance of the powers conferred by the foregoing sub-paragraph on the Lord President of the Court of Session in like manner as if those powers had been conferred on a Minister of the Crown.

4. The Levy Board shall pay to the members of any such tribunal such remuneration as the Board may with the approval of the Secretary of State determine and any travelling and other expenses reasonably incurred by them as members of the tribunal.

5. The Levy Board shall provide any such tribunal with such secretarial and other facilities as may appear to the Board to be necessary or expedient, and, without prejudice to paragraph 7 of this Schedule, shall pay any expenses incurred by the tribunal for the purposes of their functions with the approval, whether general or special, of the Levy Board.

6. If any such tribunal thinks it just so to direct in allowing any appeal by a bookmaker, the Levy Board shall pay to that bookmaker such amount as the tribunal may specify towards expenses appearing to the tribunal to have been reasonably incurred by the bookmaker in connection with the appeal.

7. If any such tribunal, in dismissing any appeal by a bookmaker, or on the abandonment of any appeal after the tribunal has taken some action towards its determination, thinks it just that the bookmaker should make a payment towards expenses incurred by the tribunal in connection with the appeal, the tribunal may certify accordingly and the Levy Board shall be entitled to recover from the bookmaker as a debt due to them the amount specified in the certificate.

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Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Racecourse Betting Act, 1928	18 & 19 Geo. 5. c. 41.
Betting and Lotteries Act, 1934	24 & 25 Geo. 5. c. 58.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
House of Commons Disqualification Act, 1957 ...	5 & 6 Eliz. 2. c. 20.
Betting and Gaming Act, 1960	8 & 9 Eliz. 2. c. 60.